No. 2026-1817

UNITED STATES COURT OF APPEALS
FOR THE FEDERAL CIRCUIT

GEM PRODUCTS, LLC,

Plaintiff-Appellant,

v.

RUPP MARINE, INC.,

Defendant-Appellee.

Appeal from the United States District Court for the Southern District of Florida, Case No. 2:25-cv-14047-DMM, Hon. Donald M. Middlebrooks

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REPLY BRIEF FOR PLAINTIFF-APPELLANT GEM PRODUCTS, LLC

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I. ARGUMENT

The district court's error was not that it simply used imprecise terminology about "movement." Instead, it indiscriminately granted summary judgment of noninfringement across materially different claims and product configurations by replacing the actual claim language with a categorical rule that none of Rupp's Pulley Clusters cause infringement if any component can move. Neither the claims nor the intrinsic record support that rule. Rupp's generic and hypothetical examples of alternative Pulley Cluster use likewise fail to establish substantial noninfringing use. And the record contains competing evidence of the configurations of the actual Pulley Clusters Rupp sells and end-users rig and use. Any of those disputes required denial of summary judgment.

A. The District Court's Claim Construction was Legally Wrong

Rupp does not dispute the claims of the '632 Patent are materially different to the claims of the other asserted '778, '226 and '566 Patents. The '632 Patent claims a system requiring "a housing secured by at least one fastener against displacement relative to the outrigger structure." Appx68 (emphasis added). The '778 Patent claims methods, and the '226 and '566 Patents respectively claim systems and apparatus, but none include the "housing secured by at least one fastener" limitation from the '632 Patent. Instead, the claims of the '778, '226 and

’566 Patents require, in one form or another, “cord passages extend[ing] at fixed angular orientations relative to the outrigger.” Appx84; Appx101; Appx119 (emphasis added). The district court ignored these critical differences when finding wholesale noninfringement of all Asserted Patents. Appx4-5.

Rupp does not —and cannot— defend a limitation-by-limitation basis for summary judgment as to each Asserted Claim. The Order evaluated only claim 1 of the ’632 Patent, extended a legally incorrect “movement” requirement—imported into the claims of the ’632 Patent—to the other Patents that plainly do not include the housing-and-fastener language.

Rupp attempts to rely on Examiner commentary from the ’778 Patent prosecution to assert the claims of the ’632 Patent require “no movement.” Rupp’s Opposition, CAFC Dkt. 9 (“Red.Br.”) at 46. First, these Examiner comments pertained to the “fixed angular orientation” limitation the ’632 Patent plainly lacks. Appx65-68. But even assuming the commentary pertained to the ’632 Patent, it still could not support disclaimer, since “it is the applicant, not the examiner, who must give up or disclaim” claim scope. *Arendi S.A.R.L. v. Google, LLC*, 882 F.3d 1132, 1135 (Fed. Cir. 2018) (emphasis added).

And the sole portion of the ’632 Patent reexamination prosecution Rupp cited, and upon which the district court based its entire disclaimer finding, does not support “clear and unmistakable” disclaimer. Red.Br.46; Appx12. Rather, this

passage addressed only how a "fixed angular orientation" of the cord passages could differentiate over Malin's (prior art) separate, individual pulleys "snapped" onto an eyebolt, which allows the pulleys to independently dangle freely, adopting whatever orientations the respective halyard lines' tension dictate. Appx1271-1273. There is nothing that addressed anything relating to a housing that must have "no movement" or be "directly connected" an outrigger. *Id.* Significantly, the patentee dropped this proposed "fixed angular orientation" of cord passages limitation in the '632 Patent, as is not present in the '632 Patent reexamined claims, and instead retained the limitation that the "cord-passages [are] transversely offset from one another." Appx65-68.

Rupp also argues the patentee's statement that "[s]uch 'snap' coupling [in Malin] negates any notion of defining a plurality of cord passages' which are 'transversely offset' from one another" must disallow all movement of the housing relative to the outrigger and requiring a "direct, fixed" connection. Red.Br.41, 46. But it is clear the patentee was describing only how the "cord passages" align "'transversely offset' from one another," versus Malin's individual pulleys that separately "snap[]" onto the eyehook like "one link of a metal chain may hook to another link of the chain," and thus disjointedly and freely hang until halyard lines are tensioned. Appx1272. This is not disclaimer, especially involving "movement" of the housing, or that the housing must be "directly connected" to the outrigger.

At best, the statement distinguishes a configuration of independently attaching separate, distinct pulleys lacking a collective transversely offset cord passage arrangement, which allows the pulleys to independently freely dangle until tensioned by respective halyard lines. It does not clearly and unmistakably disclaim configurations where a housing may move under load while the claimed cord passages remain transversely offset, as Rupp contends. At most, these prosecution statements are ambiguous and "amenable to multiple reasonable interpretations" and thus cannot establish disclaimer. *Genuine Enabling Tech. LLC v. Nintendo Co.*, 29 F.4th 1365, 1374 (Fed. Cir. 2022).

Even assuming, *arguendo*, the "fixed angular orientation" limitation discussed during the '632 Patent reexamination pertained to movement, it still does not mean every part of Rupp's Pulley Clusters must be immovable under all Asserted Claims. And the district court never considered whether Rupp's Pulley Clusters' "cord passages" maintain the "fixed angular orientations" relative to the outrigger, as required in the '778, '226 and '566 Patents. *See* Appx2-14; Appx84-85; Appx101-102; Appx119-121.

Rupp also incorrectly treats GEM's technical expert's deposition testimony as dispositive proof all claims require a housing "directly connected" to the outrigger with "a fastener," including the claims of the '778 and '226 Patents that

have no "housing" or "fastener" limitations whatsoever.[1] Red.Br.47; Appx84-85; Appx101-102. But this testimony cited by Rupp related to GEM's expert's rebuttal invalidity report regarding how the claimed "housing" in the '632 Patent could be distinguishable over prior art. Appx5892-5894. Even if relevant, this testimony cannot rewrite the plain language of the claims to require a "direct connection" between the housing and outrigger when no such requirement exists, nor can it rewrite the claims of the '778 or '226 Patents to require "a housing" be "directly connected" with "a fastener" where no claim mentions "a housing" or "a fastener."[2] *Phillips v. AWH Corp.*, 415 F.3d 1303, 1318 (Fed. Cir. 2005) ("[A] court should discount any expert testimony that is clearly at odds with the claim construction mandated by the claims themselves….") (quotations omitted); Appx84-85; Appx101-102.

Even further assuming, *arguendo*, the '632 Patent claims require a "direct connection" as Rupp contends, Rupp does not dispute its Pulley Clusters without Stems "directly connect" with a fastener. And similarly, for Rupp's Pulley Clusters with Stems (whether loose or tight), the district court never explained how they would still not satisfy this "direct connection" requirement. There is nothing in the

[1] The '566 Patent claims include "a housing portion" and "a releasable fastening portion," but still do not have any "direct connection" requirement.

[2] *See* fn. 1.

intrinsic record that would preclude a "stem" connected to the "housing" from meeting Rupp's incorrect "at least one fastener" that "directly connects" requirement—i.e., the "stem" is the fastener that "directly connects" the housing to the outrigger. In fact, FIGs. 3 and 3A of the Asserted Patents contemplate this exact configuration, and GEM's evidence supports a finding that Rupp's Pulley Clusters with Tight Stems are consistent with those disclosed embodiments and satisfy the limitations of the Asserted Claims. Appx56-57; Appx2898-3899, Appx3905-3909, Appx3932 (¶¶94, 101, 104, 106, 158).

Rupp further created a requirement that the "cord passages" must be "on the outer side of the pulley wheel or on the side opposite the outrigger." Red.Br.15, 26. While it is unclear whether the district court based noninfringement on this contention (Appx7), nothing in the intrinsic record supports such requirement. For example, regarding "cord passages," the '632 Patent claims only:

> each of said cord management units defining a plurality of cord passages transversely offset one from the other, said cord passages respectively receiving predetermined ones of said outrigger cords to maintain independent longitudinal displacement thereof relative to the outrigger structure.

Appx68.

II. CONCLUSION

As discussed above and as set forth in GEM's Opening Brief (CAFC Dkt. 8), the district court committed several errors, any of which requires vacatur and remand, if not reversal. The district court's judgment rests on an erroneous construction, a claim-unspecific and configuration-specific analysis, and resolving disputed evidence against GEM. GEM was not required to conclusively prove infringement to defeat summary judgment. Once GEM identified evidence supporting competing inferences about Rupp's Pulley Cluster configurations, their operational characteristics, and actual end-user rigging and use, Rupp's burden could not be met through a single altered Pulley Cluster with Loose Stems demonstrative, generalized descriptions of generic pulleys, or attorney argument about unproven modifications.

Both the district court's claim-scope determination based on claim text and prosecution history, and the grant of summary judgment are reviewed de novo, with evidence viewed and inferences drawn in GEM's favor. Under either analysis, the judgment cannot stand. Therefore, the Court should vacate the Final Judgment and grant of summary judgment of noninfringement, and remand for further proceedings consistent with proper constructions and Rule 56 standards. Because the identified disputes are factual and material, those proceedings should include trial.

Dated: September 14, 2026 Respectfully submitted,

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Date: September 14, 2026

Signature: /s/ Joseph R. Lanser

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I hereby certify that on September 14, 2026, I electronically filed the foregoing Reply Brief for Plaintiff-Appellant GEM Products, LLC, with the Court's CM/ECF filing system, which constitutes service, pursuant to Fed. R. App. P. 25(c) and Fed. Cir. R. 25(a).

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